

**Court No. - 37**

**Case :-** WRIT - C No. - 13859 of 2011

**Petitioner :-** Dr. Santosh Kumar Awasthi

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** Archana Misra

**Respondent Counsel :-** C.S.C., Rajesh Tripathi

**Hon'ble R.K. Agrawal,J.**

**Hon'ble Bharati Sapru,J.**

As prayed, put up as a fresh on 11.3.2011.

**Order Date :-** 8.3.2011

S.P.

**Court No. - 36**

**Case :-** WRIT - C No. - 13859 of 2011

**Petitioner :-** Dr. Santosh Kumar Awasthi

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** Archana Misra

**Respondent Counsel :-** C.S.C., Rajesh Tripathi

**Hon'ble Satya Poot Mehrotra, J.**

**Hon'ble Rajesh Chandra, J.**

On prayer made by Shri Rajesh Tripathi, learned counsel for the respondent nos. 2 and 3, the case is directed to be put up as fresh on 23.3.2011 so as to enable him to obtain instructions.

**Order Date :-** 11.3.2011

safi

**Court No. - 36**

**Case :-** WRIT - C No. - 13859 of 2011

**Petitioner :-** Dr. Santosh Kumar Awasthi

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** Archana Misra

**Respondent Counsel :-** C.S.C., Rajesh Tripathi

**Hon'ble Satya Poot Mehrotra, J.**

**Hon'ble Rajesh Chandra, J.**

On prayer made by Sri Rajesh Tripathi, learned counsel for the respondent Nos. 2 and 3 the case is directed to be put up as fresh on 20.4.2011 so as to enable him to do the needful as mentioned in the order dated 11.3.2011.

**Order Date :-** 23.3.2011

Sh

**Court No. - 36**

**Case :-** WRIT - C No. - 13859 of 2011

**Petitioner :-** Dr. Santosh Kumar Awasthi

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** Archana Misra

**Respondent Counsel :-** C.S.C., Rajesh Tripathi

**Hon'ble Satya Poot Mehrotra, J.**

**Hon'ble Rajesh Chandra, J.**

On prayer made by Mrs. Archana Misra, learned counsel for the petitioner, the case is directed to be put-up as fresh on 13th May, 2011 so as to enable her to file Supplementary Affidavit.

In the mean-time, Shri Rajesh Tripathi, learned counsel for the respondent nos. 2 and 3 will do the needful, as mentioned in the Order dated 11.3.2011 read with Order dated 23.3.2011.

**Order Date :-** 20.4.2011

Ajeet

**Court No. - 36**

**Case :-** WRIT - C No. - 13859 of 2011

**Petitioner :-** Dr. Santosh Kumar Awasthi

**Respondent :-** State Of U.P. And Others

**Petitioner Counsel :-** Archana Misra

**Respondent Counsel :-** C.S.C., Rajesh Tripathi

**Hon'ble Satya Poot Mehrotra, J.**

**Hon'ble Rajesh Chandra, J.**

Supplementary Affidavit has been filed today on behalf of the petitioner. Let the same be placed on record.

It appears that checking was made in the premises of the petitioner on 31<sup>st</sup> October, 2010. Theft of electricity was allegedly detected. On the basis of the checking, a Provisional Assessment dated 12<sup>th</sup> November, 2010 was made in respect of the petitioner.

Copy of the Provisional Assessment dated 12-11-2010 has been filed as Annexure 2 to the Writ Petition.

The petitioner submitted Objections dated 22<sup>nd</sup> November, 2010 against the Provisional Assessment.

Copy of the said Objections dated 22<sup>nd</sup> November, 2010 has been filed as Annexure No.3 to the Writ Petition.

By the order dated 11<sup>th</sup> March, 2011 and the subsequent order passed in this case, Shri Rajesh Tripathi, learned counsel for the respondent Nos. 2 and 3 was given time to obtain instructions in the matter.

Shri Rajesh Tripathi, learned counsel for the respondent Nos. 2 and 3 states that instructions have been received by him.

Shri Rajesh Tripathi, learned counsel for the respondent Nos. 2 and 3, on the basis of instructions received by him, states that the Objections dated 22<sup>nd</sup> November, 2010 submitted by the petitioner against the Provisional Assessment were decided by the Executive Engineer concerned (respondent No. 3) by the Order /Communication No. 4630 dated 27<sup>th</sup> November, 2010.

Smt. Archana Mishra, learned counsel for the petitioner states that the said Order /Communication dated 27<sup>th</sup> November, 2010 was not received by the petitioner, and only the Demand Notice dated 11<sup>th</sup> February, 2011, copy whereof has been filed as Annexure No. 5 to the Writ Petition, was received by the petitioner.

It is not necessary to go into the controversy as to whether the copy of the said Order/ Communication dated 27<sup>th</sup> November, 2010 disposing of the Objections submitted by the petitioner, was received by the petitioner, as copy

of the said Order /Communication dated 27<sup>th</sup> November, 2010 has been provided today by Shri Rajesh Tripathi to the learned counsel for the petitioner.

Copy of the said Order/ Communication dated 27<sup>th</sup> November, 2010 will be placed on the record of this case.

Shri Rajesh Tripathi, learned counsel for the respondent Nos. 2 and 3 further submits that against the aforesaid Order/ Communication dated 27<sup>th</sup> November, 2010 passed by the Executive Engineer concerned, the petitioner has right to file Appeal under Section 127 of the Electricity Act, 2003 read with clause 6.8 (d) of the U.P. Electricity Supply Code, 2005.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, we are of the opinion that the interest of justice would be sub-served by disposing of the Writ Petition with the following directions :-

- 1- Within 30 days from today, the petitioner will file an Appeal before the Appellate Authority along with a Bank Draft for an amount equal to half of the assessed amount.
- 2- In case such Appeal is filed before the Appellate Authority, the Appellate Authority will entertain the same without raising any Objection as to the limitation for filing such Appeal.
- 3- The Appellate Authority will decide the Appeal by passing a speaking and reasoned order in accordance with law after giving opportunity of hearing to the petitioner expeditiously, preferably within a period of two months from the date of filing of such Appeal with the deposit, as mentioned above.
- 4- For a period of 30 days from today, the Recovery Proceedings against the petitioner pursuant to the Demand Notice dated 11<sup>th</sup> February, 2011 (Annexure 5 to the Writ Petition) shall remain stayed.
- 5- The question of grant of stay order during the pendency of the Appeal will be considered by the Appellate Authority. We are not expressing any opinion in this regard.
- 6- In the event of default in filing the Appeal or making the deposit as mentioned above, this order shall stand automatically vacated.

The Writ Petition is accordingly disposed of with the aforesaid directions.

It is made clear that we have not adjudicated the claim of the petitioner on merits.

**Order Date :- 13.5.2011**

AK